

STATE OF NEW YORK

8072--A

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sen. CLEARE -- read twice and ordered printed, and when printed to be committed to the Committee on Aging -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the elder law, in relation to establishing an elder financial exploitation public awareness campaign

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The elder law is amended by adding a new section 226 to
2 read as follows:

3 § 226. Elder financial exploitation public awareness campaign. The
4 director, in consultation with the superintendent of the department of
5 financial services, is hereby authorized and directed to develop and
6 conduct a public awareness campaign to educate older adults and persons
7 providing care to or who have a fiduciary responsibility to an older
8 adult on the prevention and detection of financial exploitation. The
9 campaign may utilize public forums, social media, and mass media,
10 including but not limited to internet, radio, and print advertising. The
11 director shall, at a minimum, include informational materials on the
12 office's website and distribute such materials to each area agency on
13 aging in the state. Such materials shall include, but not be limited to,
14 information on the following:

15 1. the estimated number of older adults who are victims of financial
16 exploitation in New York state and the average amount of money lost;

17 2. factors that may increase the risk of financial exploitation for
18 older adults;

19 3. common types of financial scams and fraud and indicators of such
20 types of financial exploitation;

21 4. common indicators that an older adult may be a victim of financial
22 exploitation;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 5. methods for older adults to report potential or actual instances of
2 financial exploitation;
3 6. strategies for older adults to protect against financial exploita-
4 tion; and
5 7. resources for victims of financial exploitation, including the
6 services provided through the elder abuse enhanced multidisciplinary
7 team program, as established by section two hundred twenty-five of this
8 title.

9 § 2. This act shall take effect immediately.